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THE MAGISTRATES COURT OF

WESTERN AUSTRALIA

CRIMINAL

PE 45655-45658 of 2022

WESTERN AUSTRALIA POLICE

and

VIDA REID

MAGISTRATE G. RANDAZZO

TRANSCRIPT OF PROCEEDINGS

AT PERTH ON FRIDAY, 23 FEBRUARY 2024, AT 9.41 AM

MS ROSAJI appeared for the prosecution.

MS M.L. BUCHANAN appeared for the accused.

HIS HONOUR: I will identify the accused, then take appearances by counsel. Vida Reid, is that your name?

ACCUSED: Yes, your Honour.

HIS HONOUR: Who's appearing?

BUCHANAN, MS: Buchanan, your Honour.

HIS HONOUR: Thank you, Ms Buchanan.

ROSAJI, MS: May it please, Rosaji for the Commonwealth.

HIS HONOUR: Thank you.

BUCHANAN, MS: I think my friend has an application which I've just been informed about this morning, so we will have a further application after that.

HIS HONOUR: What's the Commonwealth application?

ROSAJI, MS: Thank you, your Honour. We will be – the prosecution is discontinuing the prosecution of the charges pursuant to section 25 of the Criminal Procedure Act. We would ask the court to dismiss the charges for want of prosecution so they can be commenced at a later date.

HIS HONOUR: No. No evidence is being offered.

ROSAJI, MS: I believe there has, your Honour.

HIS HONOUR: Well, let me be clear; you're exercising – or asking the court to exercise a power under section 25 of the Criminal Procedure Act although this is a Commonwealth prosecution, obviously the procedures are adopted through the Judiciary Act. That is premised on the basis of no evidence being offered. That is how that section operates. So – and I don't know if there's any agreement about this, but you need to make that clear on the record.

ROSAJI, MS: I understand, your Honour. Perhaps if the matter could be stood down so I can take instructions from the case officer.

HIS HONOUR: All right. Thank you.

ROSAJI, MS: Thank you.

HIS HONOUR: Do you wish to be heard?

BUCHANAN, MS: We wish to be heard in relation to costs when - - -

HIS HONOUR: There's no dismissal at this stage, so you will be heard on the question of costs.

BUCHANAN, MS: In due course. Yes.

HIS HONOUR: If that comes to pass, let me be clear, Ms Buchanan. I will certainly entertain the application for costs, but I will make it clear, this is an extremely busy list. I'm not being critical. I'm not going to bury myself in a costs argument when I've got people in custody and lawyers at the bar table. That's no criticism of you, but I will simply be hearing the application, perhaps, later in the list unless there's agreement and whether I can, in a broad brush, immediately determine summarily whether the costs are reasonably and properly incurred. Is that clear?

BUCHANAN, MS: That's clear.

HIS HONOUR: All right. Thank you.

BUCHANAN, MS: Thank you, sir.

HIS HONOUR: Stand down.

(Short adjournment)

HIS HONOUR: Yes, Orderly.

ORDERLY: Recalling from your R list, Reid. Vida Reid.

HIS HONOUR: Court orderly, can I clarify which matter's being called?

ORDERLY: From your R list, Reid. Vida Reid.

HIS HONOUR: This is a recall. Thank you.

ORDERLY: Yes, your Honour.

HIS HONOUR: I'm not sure whether I'm going to be hearing further submissions on the question that arose as to the discontinuance. Someone's hesitating to get up.

STYNES, MS: May it please, your Honour, Stynes. I appear for the Commonwealth in relation to this matter.

HIS HONOUR: Yes, Ms Stynes.

STYNES, MS: Your Honour, section 25, for the charges to be dismissed.

HIS HONOUR: Yes.

STYNES, MS: The reason for that, your Honour, is that there has been some 15 months since the charges were originally commenced. There is legal professional privilege claims outstanding that the accused has made, which I understand are going to take some time. So no evidence has been led. I think that was one of the queries your Honour had made. The committal brief – part of it has been served on the accused. It's incomplete, but the Commonwealth has made the decision to discontinue the charges at this stage, having regard to outstanding disclosure and the LPP that's outstanding that needs to be reviewed. I understand there's six devices of the accused.

HIS HONOUR: Ms Stynes, I don't want to be obstructionist.

STYNES, MS: Yes, your Honour.

HIS HONOUR: Absolutely not. But if you've got a copy of section 25 of the Criminal Procedure Act there in front of you.

STYNES, MS: I believe we do, your Honour.

HIS HONOUR: Doesn't it not read:

> If no evidence has been adduced in relation to the charge, the prosecutor may inform the court that the prosecutor is discontinuing the prosecution of the charge.

Two:

> On being so informed, the court may consent or, if satisfied that discontinuance would be an abuse of process, refuse to consent to the discontinuance of the prosecution concerned.

STYNES, MS: Yes, your Honour.

HIS HONOUR: So the power is premised on the basis that if no evidence has been adduced in relation to the charge – I will pause there.

STYNES, MS: Yes, your Honour.

HIS HONOUR: How I construe that, even though a brief has been disclosed, at this point in time, no evidence has been adduced so, hence, why I asked your college, is no evidence being adduced or words to that effect.

STYNES, MS: Yes, your Honour.

HIS HONOUR: And if that's the case, then my power is enlivened. I did not get an answer directly. That's no criticism of your colleague, that's why I've raised it.

STYNES, MS: Yes, your Honour.

HIS HONOUR: So if no evidence is going to be adduced, then so be it.

STYNES, MS: That's correct, your Honour. I confirm that no evidence has been adduced in this matter.

HIS HONOUR: All right. Thank you. Do you object?

BUCHANAN, MS: No, your Honour.

HIS HONOUR: You've heard the prosecutor say that there's an intention to recharge; do you understand that?

BUCHANAN, MS: I understand that, your Honour.

HIS HONOUR: All right. On that – yes. Go on.

BUCHANAN, MS: And there won't be an application as to costs. My friend has kindly directed me to section 4 of the Accused Costs Act at this point. Just for the record, Ms Reid has been to court on 10 occasions. She was charged 14 months ago. She couldn't attend her grandmother's funeral in Iraq last Easter and her family have been subject to community opprobrium, loss of privacy, and complete stress and disruption to their life because of how the Commonwealth has dragged this matter for 14 months and I only say that to place it onto the record for the benefit of the court in the event that the prosecution reinstate charges.

HIS HONOUR: Well, at the moment, you have not indicated any objection.

BUCHANAN, MS: Well, there is no objection.

HIS HONOUR: All right. Well, there being no objection, that's all on the record. The prosecutor has flagged that there's no evidence to be adduced. It enlivens the court's

power, and as Archer J has said in the case of Morris, it, therefore, in the absence of the court being positively satisfied that there is an abuse of process, and no one has suggested that there's an abuse of process, it follows then there being no positive evidence of an abuse of process.

No objection has been taken. There being advice or the court being informed that no evidence is being adduced. The court will then consent to these charges being dismissed for want of prosecution. The accused is formally discharged on these charges and your comments are obviously on the record. That does not invite any reply from this court, but, obviously, the prosecution have heard what you've had to say. There being nothing further, that completes the matter.

BUCHANAN, MS: Thank you, your Honour.

AT 10.21 AM THE MATTER WAS ADJOURNED ACCORDINGLY

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